

BA1/2601/2019 on 28 November, 2019

Author: Alok Singh

Bench: Alok Singh

BA 1 No. 2601 of 2019
Hon'ble Alok Singh, J.

Mr. T. A. Khan, Senior Advocate assisted by Mr. V. P. Bahuguna, Advocate for the applicant.

Mr. V. K. Jemini, Deputy Advocate General for the State of Uttarakhand.

This is an application seeking regular bail in FIR No. 113 of 2019 under Section 363, 366, 376(3) IPC read with Section 5(thu)/6 of the POCSO Act, Police Station Kaladungi, District Nainital.

An FIR was lodged on 24.09.2019 by Shri. Nand Lal stating therein that her daughter aged about 15 years is enticed away by the applicant. Her daughter herself reached the parental house. Her statements were recorded under Section 161 and 164 of Cr.P.C. In her statement she stated that she is in love affair with the accused/applicant and she voluntarily left her home. On 21.10.2019, parents of the girl filed affidavits before the Investigating Officer to the effect that their daughter is 18 years of age and they have wrongly mentioned her age in the FIR as 15 years.

Mr. T. A. Khan, Senior Advocate for the applicant submits that applicant and girl are in love affair and they want to marry. As per Section 5 and 12 of the Hindu Marriage Act, the girl of 18 years of age has right to marry with the choice of her own and physical relation with consent would not amount to rape. In the present case, girl aged about 18 years left her house out of her own will and made physical relation with her own consent therefore, no offence under Section 363, 366, 376(3) IPC and under Section 5 (thu)/6 of the POCSO Act is made out.

In view of the above, bail application is allowed. Let the applicant be enlarged on bail, on his furnishing a personal bond and two sureties, of the like amount to the satisfaction of the Court concerned.

(Alok Singh, J.) 28.11.2019 pant